RESOLUTION NO. 2026-41

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DINUBA CALLING AND GIVING NOTICE OF A MUNICIPAL ELECTION TO BE HELD ON NOVEMBER 3, 2026, ORDERING THE SUBMISSION TO THE QUALIFIED VOTERS OF A TRANSACTIONS AND USE TAX MEASURE, REQUESTING CONSOLIDATION OF THE ELECTION WITH THE STATEWIDE GENERAL ELECTION, AND AUTHORIZING RELATED ACTIONS

WHEREAS, the health and safety of all residents in the City of Dinuba is the City's top priority; and

WHEREAS, as part of the City's effort to meet the growing needs of the community, the City has surveyed the voters of Dinuba and has received support for a General Sales Tax measure to be placed on the November 3, 2026 election ballot; and

WHEREAS, the City proposes to establish a general purposes Transactions and Use Tax (Sales Tax) in the amount of a three-quarter cent (3/4¢) as directed by the City Council; and

WHEREAS, the proposed, locally enacted Sales Tax measure is projected to generate general fund revenue of approximately $3,400,000 annually; and

WHEREAS, revenue generated by this measure would be used for community priorities which have been identified through community outreach efforts; and

WHEREAS, the City will continue its high standards for fiscal accountability and transparency regarding this measure to include independent financial audits and yearly reports to the community to ensure City funds are spent responsibly for the community's priorities; and

WHEREAS, pursuant to California Revenue and Taxation Code Section 7285.9, the City of Dinuba has the authority to levy a Transactions and Use ("Sales") Tax for general purposes, and subject to voter approval; and

WHEREAS, Article XIIIC, Section 2(b) of the California Constitution requires that any general tax, such as the Sales Tax, must be approved by a majority vote of the voters voting on the issue; and

WHEREAS, Article XIIC, Section 2(b) of the California Constitution requires that an election by the voters to approve a general tax must be consolidated with a statewide general election at which members of the City Council will be elected; and

WHEREAS, the proposed measure shall be voted on by qualified voters of the City, at the November 3, 2026, the date of the statewide general election; and

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Dinuba, as follows:

SECTION 1. Election Called

Pursuant to applicable provisions of California law, a Municipal Election is hereby called and ordered to be held within the City of Dinuba on November 3, 2026, for the purpose of submitting the measure described herein to the qualified voters of the City. This measure shall be designated by letter by the Tulare County Registar of Voters.

SECTION 2. Ballot Measure

The measure to be submitted to the voters shall appear and be printed on the ballot as follows:

DINUBA ESSENTIAL SERVICES, PUBLIC SAFETY, AND IMPROVEMENTS MEASURE	
Shall the measure maintaining 911 emergency response, crime investigation; retaining/attracting well-trained firefighters/police/paramedics; repairing potholes/streets/alleys; addressing homelessness; keeping public areas/parks safe/clean/well-maintained; retaining/attracting local businesses; maintaining youth recreation programs and senior services, other general city services; establishing a ¾¢ sales tax, providing approximately $3,400,000 annually until ended by voters, requiring public spending disclosure, audits, all funds locally controlled, be adopted?	YES
	NO

SECTION 3. Full Text of Measure

The full text of the Dinuba Transaction and Use Tax Ordinance is attached as Exhibit A and shall be available to the voters.

SECTION 4. Introduction of Ordinance

The City Council hereby approves the Introduction of Ordinance _____, the Dinuba Transaction and Use Tax Ordinance of 2026, attached to this Resolution as Exhibit A, and approves submittal of such Ordinance to the voters of the City of Dinuba.

SECTION 4. Nature of Tax

The tax proposed by this measure shall be a general tax as defined in Article XIIIC of the California Constitution and shall not take effect unless and until approved by a 2/3 vote of the Dinuba City Council, and until a vote of at least a majority of the voters voting on the question at the election. Revenues generated by the tax shall be deposited into the City's General Fund and may be used for any lawful municipal purpose.

SECTION 5. Consolidation

Pursuant to Section 10400 et seq. of the Elections Code, The City Council requests consolidation of this election with the Statewide General Election to be held on November 3, 2026, and requests that the Tulare County Registrar of Voters conduct the election. The Tulare County Board of Supervisors is authorized to canvass the returns of the election pursuant to Elections Code Section 10411. The Tulare County Board of Supervisors is requested to permit the Tulare County Registrar of Voters to render all services specified in Section 10418 of the Elections Code relating to the election, for which services the City agrees to reimburse the County of Tulare, in accordance with current County pro-rations and allocation procedures.

SECTION 6. Ballot Arguments

Written arguments for and against the measure may be filed in accordance with applicable law and deadlines established by the Elections Official. Pursuant to Elections Code 9282, ballot arguments on this Measure may be submitted by an individual voter eligible to vote on the Measure, a bona fide association of citizens, or any combination of voters or associations. The City Council, as individual members of the Council and as a body, are not authorized to file a written argument or any rebuttal argument for or against the Measure. An

argument for or against the measure shall not exceed 300 words in length. If more than one argument is submitted for the measure, or more than one argument against the measure, the City Clerk shall select the argument to be included with the ballot materials. Rebuttal arguments shall be permitted pursuant to applicable law.

SECTION 7. Rebuttal Arguments

Rebuttal arguments shall be permitted and may be filed in accordance with applicable law.

SECTION 8. Impartial Analysis

The City Attorney shall prepare an impartial analysis of the measure, in accord with Elections Code Section 9280.

SECTION 9. Publication and Notice

The City Clerk is authorized and directed to file a certified copy of this resolution with the Tulare County Board of Supervisors and Tulare County Registrar of Voters, and take all actions necessary to publish notice of the election in Mid Valley Times, which is a newspaper of general circulation that is regularly circulated in the territory, and comply with all applicable election laws.

SECTION 10. Conduct of Election

The Tulare County Board of Supervisors is authorized to canvass the returns of the election pursuant to Section 10411 of the California Elections Code. The election shall be conducted in all respects as required by law.

PASSED, APPROVED AND ADOPTED this 23rd day of June 2026, at a regular meeting of the Dinuba City Council by the following vote:

AYES: COUNCIL MEMBERS: Thusu, Launer, Reynosa, Prado, Nerio-Guerrero

NOES: COUNCIL MEMBERS; None

ABSTAIN: COUNCIL MEMBERS: None

ABSENT: COUNCIL MEMBERS: None

Rachel Nerio Guerrero

Rachel Nerio-Guerrero, Mayor of the City of Dinuba

ATTEST:

Maria Alaniz

Maria Alaniz, City Clerk